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Rejection of cover - Claim No.: S-26-01720899 / Formal Appeal based on new evidence

1 message

Artiom Kovnatsky <artiom.kovnatsky@gmail.com>
To: claims@roland-rechtsschutz.de

Mon, Apr 27, 2026 at 3:23 PM

Dear ROLAND Team,

I am writing to formally appeal your decision dated April 27, 2026, regarding the rejection of legal cover for my case against GitHub/Microsoft. Your rejection was based on the premise that the blocking of a GitHub account does not fall under "investment goods transactions" or "ancillary transactions." I believe this interpretation is factually incorrect in the context of a modern digital consultancy.

Please consider the following new evidence and legal arguments:

1. Proof of Investment and Business Nature (Tax Declaration 2025) Enclosed is my official tax declaration for 2025. It clearly demonstrates that my secondary self-employed activity as a Data Science Consultant is a legitimate business entity under § 19 UStG. As shown in the "Ergänzende Angaben," I have invested significant capital (resulting in a loss of -4,099.07 €) specifically to build IT infrastructure for upcoming projects in 2026/2027. My GitHub account is the central "investment good" (Investitionsgut) of this infrastructure, housing proprietary code, scientific preprints, and the intellectual property necessary for future revenue.

2. Admitted Liability by GitHub Enclosed is a statement from GitHub support ("Charlie") dated April 23, 2026. GitHub explicitly admits that my account was flagged and restricted erroneously by their automated systems. This is no longer a question of "if" my rights were violated, but a matter of determining the legal consequences of this admitted breach.

3. Direct Interference with Business Operations (Störung des Geschäftsbetriebs) In German law, this constitutes an *"Eingriff in den eingerichteten und ausgeübten Gewerbebetrieb."* The unjustified blocking of my central development platform directly caused:

- **Loss of Reputation:** My scientific community contributions (e.g., Zenodo/SVE records) and client-facing repositories were rendered inaccessible, damaging my professional standing.
- **Interruption of Momentum:** The loss of access halted the "accumulation of momentum" for my SOTA (State-of-the-Art) projects, which is a quantifiable business damage.

4. Legal Necessity for Cause Determination The legal dispute is not merely about restoring access (which was done after my documented pressure), but about establishing the root cause and liability to prevent future recurrences that threaten my long-term investments. This is an "ancillary transaction" (Nebengeschäft) essential to protecting my business assets.

Given that the opposing party has already admitted the error, the "prospect of success" (Erfolgsaussichten) for a legal claim regarding damages is exceptionally high.

I request that you re-evaluate this claim in light of the enclosed tax and correspondence evidence. I am prepared to escalate this matter to the Insurance Ombudsman should this request be denied without considering these specific business-investment links.

Best regards,

Dr. Artiom Kovnatsky



GitHub commented 4 days ago

GitHub Support

Hello,

Our apologies for the delay in getting back to you; we are currently dealing with higher than usual request volumes and are working to respond to priority issues such as yours as quickly as possible.

Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed.

We've cleared the restrictions from your account, so you have full access to GitHub again.

Please let me know if you need anything else.

Best regards,
Charlie



Artiom Kovnatsky commented 3 weeks ago

Would you like to provide any additional information or context that would be helpful for our review of your reinstatement request?

My account has been flagged, which has disabled GitHub Copilot and halted all GitHub Actions. This is currently paralyzing my professional development work at stenon.

Please perform an immediate manual review to lift the flag and restore these services.

Thank you.

Does your claim involve content on GitHub or npm.js?

github

What is the username and repository or package name that was impacted?

skovnats

Why are you requesting reinstatement?

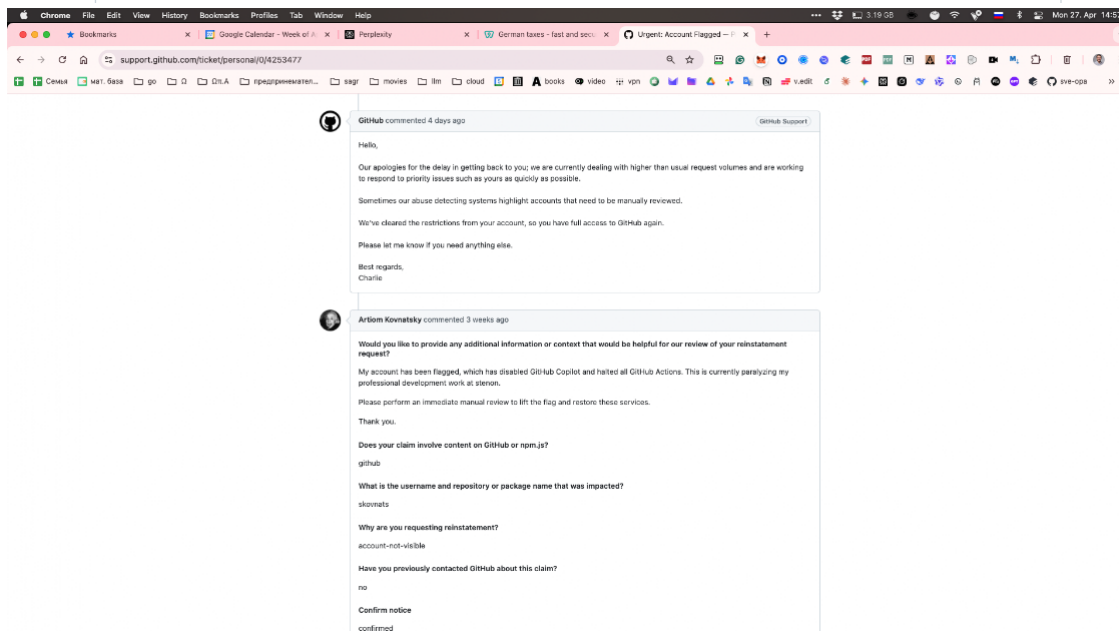
account-not-visible

Have you previously contacted GitHub about this claim?

no

Confirm notice

confirmed



On Mon, Apr 27, 2026 at 2:43 PM <claims@roland-rechtsschutz.de> wrote:

Guten Tag Artiom Kovnatsky,

mit dieser E-Mail erhalten Sie die Unterlagen der ROLAND-Unternehmensgruppe als pdf-Datei.

Wenn Sie noch nicht über den Acrobat-Reader verfügen, so können Sie ihn kostenlos von Adobe unter <http://get.adobe.com/de/reader/> herunterladen.

Haben Sie noch Fragen oder Anmerkungen, mailen Sie an claims@roland-rechtsschutz.de

Mit freundlichen Grüßen
ROLAND-Unternehmensgruppe

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2 attachments



final-899744-2025-Dr-Artiom-Kovnatsky.pdf

112K



policy.pdf

61K